



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

OCT 17 2001

DOT-E 12720

EXPIRATION DATE: September 30, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: American Honda Motor Company
Torrance, CA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce, by cargo vessel, of battery fluid in authorized packagings, in an overpack used to ship a motor vehicle, without securing the overpack to the floor of the freight container. This exemption does not provide relief from any other Hazardous Materials Regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that marking the exemption number on the shipping paper is waived; 176.76(a)(4) in that the load (overpack) is not secured to the floor of the freight container.
5. BASIS: This exemption is based on the application of American Honda Motor Company dated May 12, 2000, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Battery fluid, acid	8	UN2796	II
Battery fluid, alkali	8	UN2797	II

7. SAFETY CONTROL MEASURES:

PACKAGING - The packaging prescribed is a combination package consisting of a non-specification, non-reusable, high-strength plastic inner receptacle, packed in a strong outer fiberboard box or UN4G fiberboard box, as specified in §§ 173.154 or 173.202. The combination package is shipped with a motor vehicle in an overpack or dedicated handling device and the combination package must meet the following conditions:

(1) The gross weight of the combination packaging may not exceed 5 kgs gross mass and the inner packaging volumetric capacity may not exceed 1.0 liter.

(2) The combination packaging must be tightly packed and secured to prevent movement of the inner packages within the overpack or dedicated handling device.

(3) No more than one (1) combination package may be offered in any overpack or dedicated handling device.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. Each overpack must be marked in accordance with §172.301(c).

c. The marking requirements of § 172.203(a) as waived.

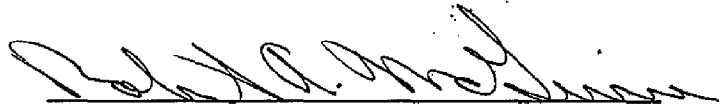
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: DBURGER